

Supplementary Opinion of the National Commission for Data Protection regarding Bill No. 7977 on compulsory education and amending: 1° the amended law of February 6, 2009 on the organization of fundamental education; 2° the amended law of March 18, 2013 on the processing of personal data concerning students.

Deliberation No. 58/AV32/2023 of July 7, 2023.

1. In accordance with Article 57.1.e) of Regulation (EU) 2016/679 of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation) (hereinafter referred to as the "GDPR"), which is referenced in Article 7 of the law of August 1, 2018, on the organization of the National Commission for Data Protection and the general regime on data protection, the National Commission for Data Protection (hereinafter referred to as the "National Commission" or "CNPD") "advises, in accordance with the law of the Member State, the national parliament, the government, and other institutions and bodies regarding legislative and administrative measures relating to the protection of the rights and freedoms of natural persons with regard to processing."

Article 36.4 of the GDPR states that "Member States shall consult the supervisory authority in the context of the preparation of a legislative proposal to be adopted by a national parliament, or a regulatory measure based on such a legislative proposal, which relates to processing."

2. On August 5, 2022, the CNPD issued an opinion on Bill No. 7977 1° regarding the right to education and compulsory education; 2° amending the amended law of March 18, 2013 on the processing of personal data; and 3° repealing the amended law of February 6, 2009 on compulsory education (hereinafter referred to as the "initial opinion").

3. By letter dated May 23, 2023, Mr. the Minister of National Education, Childhood and Youth invited the National Commission to express its opinion on the government amendments to the bill, which were approved by the Government Council in its meeting of May 12, 2023 (hereinafter referred to as the "government amendments"). These government amendments modify, among other things, the title of the bill under review to "Bill on compulsory education and amending: 1° the amended law of February 6, 2009 on the organization of fundamental education; 2° the amended law of March 18, 2013 on the processing of personal data concerning students" (hereinafter referred to as the "bill").

4. The CNPD wishes to reiterate, and even clarify, two of its observations made in its initial opinion.

1. Definition of distance education, home education, or hybrid form

5. The National Commission noted in its initial opinion that neither the text of the bill nor the commentary on the articles provided explanations regarding the concrete modalities of distance education, in hybrid form or in the form of home education, so it could not express an opinion on the potential consequences for data protection.

6. The Council of State similarly stated in its opinion of December 23, 2022, on the bill that "[...] the terms 'at a distance' and 'in hybrid form' are not defined in the draft law nor in other laws concerning education." Regarding home education specifically, the Council of State had noted in that opinion that "home education is subject, for fundamental education, to Article 21 of the amended law of February 6, 2009, on the organization of fundamental education [...]. However, for secondary education, the Council of State finds that a legal framework governing home education does not seem to exist. In the absence of explicit legal provisions in this regard, home education at the secondary level is excluded."

7. By amendment 3, the authors aim in this context to replace the wording of the initial Article 12, which becomes the new Article 5 of the bill, providing in paragraph 2 the following: "The obligation of education is also satisfied by home education carried out according to conditions determined by law."

8. Furthermore, the commentary on amendment 3 specifies that "[t]he bill establishes the obligation of education and the principles that govern it. The terms 'at a distance' and 'in hybrid form' relate to the functioning of compulsory courses, activities, and internships and will be defined in the various organic laws."

9. The National Commission understands that the various organic laws will be amended to define the

modalities for remote education, in hybrid form and at home. It already recommends to the authors of the aforementioned future laws that, in the event that personal data processing is carried out in the context of remote education, in hybrid form or at home, these should be detailed in the body of the text of the various draft laws for reasons of legal certainty in favor of all parties involved. The CNPD will then express its opinion at the appropriate time on any provisions regarding data protection.

II.

Monthly Monitoring of School Attendance by the Minister

10. Article 16.1 of the initial draft law, or the new Article 9.1 of the draft law under review, provides that "the monitoring of compliance with the school attendance obligation is the responsibility of the minister, who exercises it continuously, and at least once a month." In its initial opinion, the CNPD noted, however, that the text remained silent regarding the concrete modalities of said monitoring, while the commentary on the articles specified that the provision in question, namely Article 16 of the initial draft law, would allow the minister responsible for national education (hereinafter referred to as the "minister") to conduct a "systematic, more regular, and computerized monitoring, by allowing the comparison of the various student files managed by the minister with the national register of natural persons; the aim being to centralize the monitoring procedure for the school attendance obligation. The minister uses for this purpose the means provided by the amended law of March 8, 2013, concerning the processing of personal data."

The CNPD had noted in this context in its initial opinion that the amended law of March 18, 2013, concerning the processing of personal data relating to students (hereinafter referred to as the "amended law of March 18, 2013") would already allow the minister to access, in pursuit of the purpose of monitoring compliance with the school attendance obligation, data from the national register of natural persons (hereinafter referred to as the "RNPP") to obtain identification information of students and their legal representatives. However, the possibility of cross-referencing said RNPP data with the various student files managed by the minister was not explicitly provided for in the law.

11. It notes that henceforth the new Article 9.2 of the draft law, amended by Amendment 6, provides that "[t]he monitoring [of compliance with the school attendance obligation by the minister] is carried out by cross-referencing the data from the national register of natural persons concerning minors under the school attendance obligation with those provided for in Article 8." Said Article 8, amended by Amendment 5, states that "[t]he establishments referred to in Article 5, paragraph 1, points 1° to 3°, shall transmit to the minister the data necessary for monitoring compliance with the school attendance obligation through a computer system made available by the minister."

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The commentary on the said amendment specifies that by "necessary data" are meant those "defined by the amended law of March 18, 2013, concerning the processing of personal data relating to students."

12. The National Commission assumes that this refers to the personal data listed in Articles 3.2 and 3.3.a) (as amended by the draft law) of the amended law of March 18, 2013, whose processing by the minister aims precisely, among other things, at the purpose of "monitoring compliance with the compulsory education requirement." Nevertheless, for reasons of legal certainty, it recommends that the authors of the draft law make an express reference, in the body of the draft law, to the relevant provisions of the amended law of March 18, 2013.

13. It should also be noted that the new Article 14 of the draft law, as amended by Amendment 12, aims to modify Article 4.1, point 7°, of the amended law of March 18, 2013, in order to allow the

minister access to "files operated on behalf of the municipal administrations for the purposes of monitoring compliance with the compulsory education requirement, for the purposes of monitoring school attendance, and for the purposes of planning school organization." It is not clear, in the eyes of the CNPD, which files are exactly referred to, especially since it results from the explanatory memorandum that "this draft law provides that the monitoring of compliance with the compulsory education requirement would no longer fall under the jurisdiction of the municipalities, but would be the exclusive responsibility of the Minister of National Education, and this from the beginning of the compulsory education requirement." According to the understanding of the CNPD, municipal administrations will no longer intervene in the framework of monitoring the compulsory education requirement, so they should, in principle, no longer operate files for this purpose.

14. The CNPD wonders in this context whether the minister will manually cross-reference samples of data from the RNPP with the data transmitted by the institutions or whether, on the contrary, an automated cross-referencing is planned that would allow, for example, the automatic detection of whether the data of a minor under compulsory education contained in the RNPP is not among the data transmitted by the institutions? The CNPD also questions how the minister intends to detect minors who are no longer subject to compulsory education in cases where they have already obtained a diploma or certificate as provided for by the new Article 4.2 of the draft law.

15. It also aligns itself with the opinion of the Council of State, which noted that "the minister can certainly monitor the enrollment of a minor as well as their physical presence, but that the monitoring of attendance 'remotely' as well as 'in hybrid form', or even in the context of home visits, is not sufficiently regulated."

5 Provided for by Article 3.1 first point of the amended law of March 18, 2013.

6 Opinion of the Council of State, p. 10.

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16. Finally, it is commendable that the authors have provided certain clarifications regarding the data processing carried out in the context of monitoring the school attendance obligation of minors who have signed an employment contract. Specifically concerning the new article 12.4 of the draft law, amended by amendment 10, it stipulates that a minor of at least sixteen years old "who has signed an employment contract is exempt from the school attendance obligation for the duration of this employment contract" and that "the written request, accompanied by a copy of the employment contract, is submitted by the persons holding parental authority to the minister no later than eight days before the start of the requested exemption." Paragraph 3 of the new article 12.4 of the draft law specifies that "the monitoring is carried out by cross-referencing the data from the file managed on behalf of the General Inspectorate of Social Security with the data of minors benefiting from an exemption from the school attendance obligation." According to the commentary on amendment 10, "the monitoring of the school attendance obligation is carried out according to the new provisions set forth in the amended law of March 18, 2013, concerning the processing of personal data relating to students and the new article 9."

17. By amendment 12, additional modifications to the amended law of March 18, 2013, are indeed introduced, providing, among other things, that to monitor compliance with the school attendance obligation, the minister may access the "file managed on behalf of the General Inspectorate of Social Security, which provides information on the affiliation periods of minors benefiting from an exemption from the school attendance obligation for the duration of their employment contract" and that the minister is authorized to communicate personal data relating to students "to the General Inspectorate of Social Security, for the purpose of communicating the affiliation certificates of minors benefiting from

an exemption from the obligation for the duration of their employment contract."

18. The National Commission nevertheless has difficulties understanding the concrete modalities of the minister's monitoring of the school attendance obligation in this specific context, especially since the commentary on the articles contains no explanation regarding these modifications. It wonders, in particular, whether the "data of minors benefiting from an exemption from the school attendance obligation," as mentioned in paragraph 3 of the new article 12.4 of the draft law, is stored in the same file that contains the data transmitted by the institutions? If this is the case, does it mean that the minister will first cross-reference the data of minors contained in the RNPP with the data transmitted by said institutions, and only if he finds that a minor benefits from an exemption from the school attendance obligation will he proceed to cross-reference with the aforementioned file managed by the General Inspectorate of Social Security?

7 Article 4.1, point 9) of the amended law of March 18, 2013, as amended by the draft law under review. Article 6, point 13, of the amended law of March 18, 2013, as amended by the draft law under review.

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Thus adopted in Belvaux on July 7, 2023.

For the National Commission for Data Protection

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